

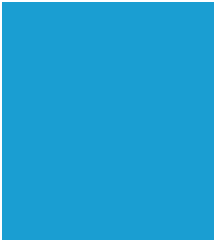
COMING SOON
Full report expected in April 2018



SEARCHING FOR SOLUTIONS

Lessons for Syria

THEMATIC REPORT



KEY FINDINGS

Introduction

IDMC estimates that there were nearly 2.9 million new displacements in Syria in 2017, bringing the number of internally displaced people (IDPs) in the country to 6.1 million as of the end of the year.¹ Around 655,000 IDPs and 66,000 refugees also returned throughout the year – yet for every Syrian refugee or IDP who returned home in 2017, a further three were newly displaced.²

Achieving a durable solution requires more than return, local integration, or settlement elsewhere. According to IASC's framework on durable solutions, durable solutions are achieved "when internally displaced persons no longer have any specific assistance and protection needs that are linked to their displacement and can enjoy their human rights without discrimination on account of their displacement".³

Based on a thorough literature review examining pathways toward durable solutions for IDPs in Bosnia, Colombia, Iraq, Kosovo and Sri Lanka, this overview summarises lessons learned and recommendations for those working with communities affected by displacement in Syria, ahead of the report's release in April 2018.

Three lessons learned

Subjective security perceptions inform prospects for durable solutions

Security threats are an obvious barrier to durable solutions. Even once a conflict has officially ended, activity by illegal armed groups can put IDPs' safety at very real risk in areas of both displacement and return. In Iraq, the Islamic State in Iraq and the Levant (ISIL) has continued to launch sporadic attacks; in Colombia territorial disputes between illegal armed groups linked to the drug trade and illegal mining continue apace.⁴

Explosive hazard contamination constitutes an additional security threat in all of the locations examined. Sri Lanka's 2016 national policy on durable solutions identifies landmines as an ongoing challenge more than six years after the end of the country's conflict.⁵

Alongside these objective threats, subjective perceptions of security are also important. This is particularly true for IDPs going back to areas where they will be part of an ethnic minority. Few IDPs in Bosnia or Iraq have been willing to return in such circumstances due to concerns about their physical safety and discrimination.⁶ The same can be said of IDPs in Colombia and Iraq who fear threats and retributions based on perceived political allegiances or affiliation with non-state groups.⁷

Finally, those severely affected by trauma are particularly susceptible to such fears of insecurity, which may further impede their prospects of achieving durable solutions and contribute to heightening their vulnerability to protracted displacement.⁸

Recommendations:

1. Clear explosive hazards in advance of assisted returns, and ensure that people who may decide to return spontaneously are informed about the risks
2. Promote dialogue between returning and host populations, enabling participants to identify common problems and practical solutions to improve social cohesion
3. Facilitate go-and-see visits to help people make an informed decision about whether or not to return
4. Mainstream vulnerability to ensure that elderly people, those with physical or mental disabilities, female-headed households and traditionally marginalised groups are not left behind in protracted displacement

Urban displacement heightens vulnerabilities

A second lesson learned concerns the numerous challenges posed by urban displacement, and the specific protection needs and vulnerabilities experienced by IDPs in urban settings.

Experience shows that housing shortages and property disputes lead to an increase in unplanned settlements that fail to meet appropriate standards in terms of shelter, water and sanitation.⁹



Abd, his wife and their two children made a very dangerous journey from Sabha, Deir Az Zour, Syria. It was very difficult to leave as ISIS prevented people from leaving its territory. They arrived in Mabrouka camp after walking for more than three days. They are thinking of returning soon. "We don't have much money in the camp, and can't make a living here. I want my children to go to school, and to study. This generation has lost the main thing in life; education. A number of people are illiterate." Photo: NRC

The challenges urban IDPs face in re-establishing or starting new livelihoods are also particularly acute. Those who arrive in towns and cities from rural areas and attempt to integrate often lack the skills to compete in urban markets, which further increases their vulnerability.¹⁰

Restitution of property is key to the achievement of durable solutions. In Bosnia, the sale or rental of IDPs' restituted property, or compensation in lieu, has helped to fund their local integration and settlement elsewhere.¹¹ Restitution mechanisms are costly and complex, however, and bottlenecks are likely in large-scale displacement crises. In Syria, it is estimated that more than 2 million property restitution claims will be filed.¹²

IDPs who did not own property before their displacement, lived in informal urban settlements or had no recognised HLP documents will find themselves particularly vulnerable.¹³ Female-headed households may also face challenges as a result of their limited property rights; in both Bosnia and Iraq, women and particularly widows have struggled to assert their rightful ownership as they lack necessary documents to prove their marriage, the death of their spouse or their right to inherit.¹⁴

Recommendations:

1. Establish effective mechanisms to facilitate property restitution or compensation for IDPs, including former tenants, through expedient administrative processes, including flexible documentation requirements allowing for reliable witnesses in lieu of paperwork if needed.
2. Ensure that restitution is possible irrespective of return intentions, so that IDPs can sell or rent their property or spend their compensation to fund alternative durable solutions if so desired
3. Establish income-generating and vocational training programmes in urban areas, with a particular focus on IDPs from rural areas
4. Promote service provision, infrastructure development and livelihood opportunities in rural areas in order to limit urban congestion

International responses must fit national and local realities

As shown in post-war Sri Lanka, national commitment to achieving durable solutions is sometimes lukewarm at best.¹⁵ Despite the significant needs of Sri Lanka's displaced population, the government's victory in 2009 was followed by increasing restrictions on humanitarian access.¹⁶

Even when national will is strong, other challenges are likely to emerge. Some local authorities in Bosnia actively obstructed initial efforts to achieve durable solutions, particular when it came to property restitution.¹⁷ Some poor municipalities in Colombia lack the resources to implement national policies designed to respond to displacement, while officials in others have been intimidated by armed groups.¹⁸

The role of the international community in supporting durable solutions is highly context-dependent. In Iraq, the need for international support given the country's limited resources is enshrined in the 2008 policy on addressing displacement.¹⁹ The role of international organisations in Colombia has been more tentative given the country's strong political system and competent institutions. While humanitarian actors have played a significant role in assisting IDPs in some parts of the country, the international community's role in Colombia has been broadly limited to supporting the state through human rights advocacy and monitoring.²⁰ In Bosnia and Kosovo, international organisations have played a key role promoting and encouraging progress toward durable solutions, at times adopting a more interventionist approach.²¹

Recommendations:

1. Work with donors to ensure financial support for national authorities is conditional on respect for human rights and unrestricted humanitarian access
2. Set up mechanisms to monitor the implementation of national policies for durable solutions and respect for human rights at all levels, in partnership with civil society and international monitors
3. Provide capacity and resources for poor rural municipalities to ensure that national policies are implemented without discrimination at the local level
4. Support participatory, demand-driven and rights-based durable solutions programmes at the local level, either through direct financial support or assistance that meets donors' funding requirements

Moving forward

This executive summary has provided a snapshot of lessons learned and recommendations for operational actors working with displacement-affected communities in Syria. The full report, due for publication ahead of the Brussels conference in April, provides more in-depth insight into displacement crises and associated response in the different case study locations outlined in this summary.

Given the myriad complex challenges that undermine prospects for durable solutions in Syria, stakeholders would do well to learn from these successes and failures. Without an effective, holistic and collaborative response, the country's displacement crisis will not be resolved.

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